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|           |                                                                                                   | <p>delivery of the goods to Cambodia. Merely negotiating remotely with Plaintiffs for a single sale of goods to be delivered to Cambodia does not establish Defendants purposefully availed themselves of the benefits of California.</p> <p>The motion is granted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>8</b>  | <b>24-01397104</b><br><br><b><i>Doyle vs. Waldorf Astoria Monarch Beach &amp; Resort Club</i></b> | <b>Motion for Summary Judgment and/or Adjudication</b><br><br><b>OFF CALENDAR</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>12</b> | <b>24-01408634</b><br><br><b><i>Gallegos vs. Kobus</i></b>                                        | <b>Motion to Be Relieved as Counsel of Record</b><br><br><p>Counsel Theodore Hankin’s Motion to Be Relieved as Counsel is MOOT.</p> <p>Plaintiff Mark Gallegos and Hankin filed a substitution of attorney on 4/21/26 indicating that Hankin was being substituted out as counsel and Gallegos was representing himself.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>15</b> | <b>22-01292736</b><br><br><b><i>Martin vs. The Stag Bar, Inc.</i></b>                             | <b>Motion for Summary Judgment and/or Adjudication</b><br><br><p>Defendant The Stag Bar, Inc.’s Motion for Summary Judgment is MOOT.</p> <p>This Court previously entered an order issuing terminating sanctions against Plaintiff. (ROA 372.) Thus, Defendant’s motion for summary judgment is moot.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>16</b> | <b>22-01269208</b><br><br><b><i>Moran vs. Torelli Realcorp</i></b>                                | <ol style="list-style-type: none"> <li><b>1) Demurrer to Complaint</b></li> <li><b>2) Motion to Compel Further Responses to Form Interrogatories</b></li> <li><b>3) Motion to Compel Response to Requests for Admissions</b></li> <li><b>4) Motion to Strike Portions Of Complaint</b></li> </ol> <p><b><u>Demurrer</u></b></p> <p>Defendant Michael Meyer’s Demurrer to the Frist Amended Complaint (FAC) is OVERRULED. Defendant is to file an answer within 20 days of this ruling.</p> <p><b><u>1st Cause of Action – Disgorgement of Profits</u></b></p> <p>“Except as provided in subdivision (e), a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract.”</p> <p>Plaintiff has sufficiently alleged a claim for disgorgement of profits under Business and Professions Code section 7031(b). Plaintiff alleges he paid Defendant for contracting work, which Defendant was unlicensed to perform. (FAC, ¶¶ 19-23.)</p> <p>Although the statute of limitations is 1 year, Defendant does not explain how the claim is untimely under the allegations of the FAC. (See <i>San</i></p> |

*Francisco CDC LLC v. Webcor Construction L.P.* (2021) 62 Cal.App.5th 266, 278.)

Thus, the demurrer to the 1st cause of action is overruled.

2nd Cause of Action – Breach of the Implied Duty of Reasonable Care

“ ‘Accompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of the contract.’ The rule which imposes this duty is of universal application as to all persons who by contract undertake professional or other business engagements requiring the exercise of care, skill and knowledge; the obligation is implied by law and need not be stated in the agreement [citation].” (*Roscoe Moss Co. v. Jenkins* (1942) 55 Cal.App.2d 369, 376.)

Plaintiff has sufficiently stated a claim for breach of the implied duty to perform the contract with reasonable care. Plaintiff alleges a contract (FAC, ¶ 29), Defendant failed to use reasonable care while performing pursuant to the contract (FAC, ¶ 31) and damages (FAC, ¶ 32). Defendant’s claim that Plaintiff must also claim a breach of contract is not supported by any legal authority. Thus, the demurrer to the 2nd cause of action is overruled.

**Motion to Strike**

Defendant Michael Meyer’s Motion to Strike the Frist Amended Complaint (FAC) is DENIED.

Defendant’s requests for judicial notice are GRANTED.

First, Defendant argues the DOE Amendment constitutes an amended complaint which prohibits Plaintiff from amending his complaint pursuant to Code of Civil Procedure Section 472 prior to the opposition deadline to a demurrer. However, amendments for substituting the name of fictitious doe defendants is separately addressed in Section 474 and Defendant cites to no authority which provides the sections are mutually exclusive. Additionally, Section 472 does not limit a plaintiff in the types of amendments permissible. (*Ryan G. v. Department of Transp.* (1986) 180 Cal.App.3d 1102, 1105.) Thus, Plaintiff’s amendment to add new parties and plead different causes of action is permissible.

Defendant also argues that Plaintiff waived his right to amend prior to the opposition date for a demurrer by opposing the demurrer. However, Section 472 does not contain such a limitation.

Finally, Defendant complains about service, however, Defendant offers no legal authority for striking a complaint based on service. (Cal. Rules of Court, rule 3.110(b) does not state it’s requirement to serve is a grounds for a motion to strike.). Thus, Defendant’s Motion is denied.

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|    |                                                                                   | <p><b><u>Discovery Motions</u></b></p> <p>Plaintiff Gene Moran’s Motion to Compel Further Responses to Requests for Admission and Form Interrogatories are CONTINUED to [REDACTED].</p> <p>“All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.” (Code Civ. Proc., § 425.16(g).)</p> <p>No good cause has been shown to permit discovery prior to the ruling on the Anti-SLAPP motion currently scheduled for hearing on 11/12/26.</p>                                                                                                                                                                                       |
| 19 | <p><b>23-01343055</b></p> <p><b><i>Surdyk's Decorating vs. McAllister</i></b></p> | <p><b>Motion to Reinstate Default</b></p> <p>Plaintiff’s request to reinstate default and default judgment against Douglas McAllister is CONTINUED to [REDACTED].</p> <p>Plaintiff has informed the Court that the probate court continued the hearing to reopen the estate to December 9, 2026. Thus, this hearing shall be continued to allow for the probate court to complete its hearing regarding the reopening of the estate.</p> <p>Additionally, the Court orders the 3-year time limitation on serving a defendant, tolled (from 1/27/25 to present) for impossibility. (Code Civ. Proc., §§ 583.210(a), 583.420(d).)</p>                                                                                                                                                                                                                                                                                                                  |
| 20 | <p><b>25-01533027</b></p> <p><b><i>Zuniga vs. 4Gen Digital, Inc.</i></b></p>      | <p><b>Motion to Strike - Anti SLAPP</b></p> <p>Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips’ Special Motion to Strike the Complaint (Anti-SLAPP) is GRANTED in part and DENIED in part.</p> <p><b>Defendants’ evidentiary objections</b></p> <p>Defendants object to certain portions of the Declaration of Gilberto Orozco Zuniga.</p> <p>Defendants’ objections are SUSTAINED.</p> <p><b>Plaintiff’s allegations</b></p> <p>Plaintiff Gilberto Orozco Zuniga filed a complaint against Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips alleging the following causes of action in connection with his employment with Defendants:</p> <ol style="list-style-type: none"> <li>1) Retaliation in Violation of FEHA Cal. Gov. Code § 12940(h);</li> <li>2) Disability Discrimination Perceived Disability - FEHA Cal. Gov. Code § 12940(a);</li> </ol> |